

21STCV30008 21STCV30008

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 21STCV30008 Hearing Date: September 24, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

21STCV30008

BOG

SUN EO vs WON J. JANG, et al.

September

24, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR TERMINATING SANCTIONS TO STRIKE THE ANSWERS OF
DEFENDANTS KENNETH HONG AND CHRISTINE OAM FOR THEIR FAILURE TO COMPLY WITH THE
COURT ORDER TO RESPOND TO REQUEST FOR PRODUCTION AND REQUEST FOR ADDITIONAL
SANCTIONS OF \$1710.00 AGAINST DEFENDANTS.

RULING:

The Court grants the
unopposed Motion.

The Court strikes the Answers
of Defendants CHRISTINE YOUNG OAM and KENNETH HONG, and enters their defaults.

Plaintiff BOG SUN EO is
awarded \$1,710.00 in sanctions against Defendants CHRISTINE YOUNG OAM and
KENNETH HONG, jointly and severally, due and payable within 20 days of this
Order.

Plaintiff to give notice.

I.

BACKGROUND

A trial of this case was held,
and the Court issued the ruling on March 10, 2026, finding grounds for punitive
damages against Defendants KENNETH HONG, CHRISTINE OAM, and KH & RH REALTY,
INC.

Previously, by Motions,
filed on July 1 and 2, 2026, Plaintiff moved to compel production of financial documents
related to the trial issue of punitive damages, from Defendant KENNETH HONG, and
Defendant CHRISTINE YOUNG OAM.

On July 23, 2026, the
Court granted that Motion to Compel, and vacated the Non-Jury Trial regarding
Punitive Damages scheduled for August 4, 2026.

On August 26, 2026, Plaintiff
filed the Motion for Terminating Sanctions against Defendants for disobeying
the above-referenced Minute Order.

No Oppositions have been
filed to these matters.

II.

LEGAL STANDARD

Where a party willfully

disobeys a discovery order, courts have discretion to impose terminating,

issue, evidence or monetary sanctions. (E.g.,

Code Civ. Proc., §§ 2023.010, subd. (g), 2030.290, subd. (c); *R.S. Creative, Inc. v. Creative Cotton, Ltd.*

(1999) 75 Cal.App.4th 486, 495.)

“A trial court has

broad discretion to impose discovery sanctions, but two facts are generally

prerequisite to the imposition of nonmonetary sanctions....: (1) absent unusual

circumstances, there must be a failure to comply with a court order, and (2)

the failure must be willful.” (*Biles v.*

Exxon Mobil Corp. (2004) 124 Cal.App.4th 1315, 1327. But see *Reedy v. Bussell* (2007) 148 Cal.App.4th

1272, 1291 [“willfulness is no longer a requirement for the imposition of

discovery sanctions.”].)

III.

ANALYSIS

Plaintiffs move for an Order

imposing monetary sanctions of \$1710.00, jointly and severally, against Defendants

KENNETH HONG, and CHRISTINE YOUNG OAM, based upon their willfully failing to

comply with this Court’s July 23, 2026 Order,

Terminating sanctions are

authorized where the evidence shows that less severe sanctions will not be

successful in compelling discovery responses. (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262,

279-280.)

To avoid sanctions, the

burden of proving that a discovery violation was not willful is on the party on

whom the discovery was served. (*Cornwall*

v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 252- 253.) “If the

party seeking a monetary sanction meets its burden of proof, the burden shifts

to the opposing party attempting to avoid a monetary sanction to show that it

acted with ‘substantial justification.’” (*Doe*

v. U.S. Swimming, Inc. (2011) 200 Cal.App.4th 1424, 1435.)

Here, no Oppositions have
been filed to show other than willful violations, or substantial justification.

IV.

CONCLUSION

Default prove-up

procedures must be followed for defaults entered as discovery sanctions. (Greenup
v. Rodman (1986) 42 Cal.3d 822, 827-828; Matera v. McLeod (2006) 145
Cal.App.4th 44, 60; Reedy v. Bussell (2007) 148 Cal.App.4th 1272, 1294.)

Therefore, the Court grants
the unopposed Motion, as prayed, and adds default entries.